

Court No. - 32

Case :- WRIT - C No. - 38304 of 2018

Petitioner :- Sarojini Shahu
Respondent :- State Of U.P. Through D.M. Mirzapur And 4 Others
Counsel for Petitioner :- Seema Mishra
Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Shashi Kant Gupta,J.

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This writ petition has been filed , interalia, for the following relief:

" Issue a writ order or direction in the nature of the certiorari to quash the recovery certificate dated 11.8.2018 issued by Tahsildar District Mirzapur against the (dead person Shivmangal Shahu) petitioner's husband (Annexure no. 9) and further be please to set aside the entire proceeding against the dead person Shivmangal Shahu son of Punai Ram Shahu in the interest of justice."

The petitioner is raising dispute with regard to the correctness of the bill.

At the very outset, Mr. Narendra Kumar Tiwari, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

In view of the above, we are not inclined to entertain this writ petition. In case, the petitioner approaches the appropriate authority for redressal of his grievances within 15 days from today, his application will be considered and decided by the authority concerned within 30 days by a speaking order in accordance with law after giving opportunity of hearing to the petitioner.

Recovery proceedings in pursuance of impugned recovery certificate dated 11.8.2018 issued by Tahsildar District Mirzapur shall remain in abeyance for a period of 45 days or till the order is passed by the authority concerned, whichever is earlier.

With the aforesaid observation, the writ petition is finally disposed of.

Order	Date	:-	22.11.2018
MLK			